HM Courts & Tribunals Service

ONC 003

Making a counterclaim for possession

If you believe that a party has done something wrong or failed to act, you can make a counterclaim.

For example, if they:

- left a property in a state of disrepair
- did not protect your tenancy deposit

You may not be able to make a counterclaim where the claimant is the Crown, such as a Government Department. Ask at your local county court office for further information.

You will have to pay a fee to make a counterclaim unless you're eligible for help with fees. Check if you can get help with court fees at www.gov.uk/get-help-with-court-fees

The amount you pay depends on what you're claiming. If it's a claim for an amount of money, the fee depends on the value of your claim.

Name of court

Claim number

Name of claimant

Name of defendant

Date of hearing

Day Month Year

HMCTS USE ONLY

1.1 What are you claiming for?

- ☐ A sum of money. **Go to section 1.2.**
- ☐ Something else. **Go to section 1.3.**
- ☐ Both. **Go to section 1.2.**

1.2 Are you claiming for a specific sum of money?

- ☐ Yes. I am claim for

  £

- ☐ No. The maximum value of my claim is

  £

Note 1.2: If you do not know the exact amount, you must give an estimate of the maximum value of your claim.

©Crown copyright 2026

1.3 Who are you making the counterclaim against?

Their name

Their address

First line of address

Second line of address

Town or city

County (optional)

Postcode

1.4 What is your counterclaim for?

1.5 What facts would you like the court to consider when deciding the claim?

2. Court fee for a counterclaim

What you need to pay

You can find out the court fee for this application at: www.gov.uk/government/publications/fees-in-the-civil-and-family-courts-main-fees-ex50

the court fee is

How to pay the court fee

☐ **I have not included payment because**

☐ I have applied for Help with Fees online and my reference number is

H	W	F						

☐ I am applying for Help with Fees, see attached form **EX160**

☐ Other – please explain why

☐ **A debit or credit card payment**

☐ I will pay over the phone, please call me on this number

☐ please email me details on how to pay, my email address is

☐ I attached a **cheque or postal order,** made payable to 'HMCTS'

☐ **Fee account details – for use by legal professionals**

Your account number

P	B	A							

Your reference (if applicable)

If you cannot afford the court fee

You may not have to pay a fee, or you may get some money off it if you only have a small amount of savings and investments, receive certain benefits or are on a low income.
You can apply for help with court and tribunal fees online at www.gov.uk/help-with-court-fees or through the 'EX160 Apply for help with fees' form and 'EX160A – How to apply for help with fees' guidance.

Fee account – a way for solicitors, local authorities and other regular users to make payments relating to civil and family cases.

3. Statement of truth

I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

☐ **I believe** that the facts stated in this counterclaim are true.

☐ **The defendant** believes that the facts stated in this counterclaim are true. **I am authorised** by the defendant to sign this statement.

Signature

☐ Defendant

☐ Litigation friend (where defendant is a child or a patient)

☐ Defendant's legal representative (as defined by CPR 2.3(1))

Date

Day Month Year

Full name

Name of defendant's legal representative's firm

If signing on behalf of firm or company give position or office held

What to do next

You should post this form and any documents you would like to include as part of your defence to the court dealing with your claim.

Support to submit your defence

If you need help submitting your defence, such as getting this form in a different format, contact your local court. You can find their contact details in the documents you received about the possession claim.

You can also find your local court using the Find a Court or Tribunal service: https://www.find-court-tribunal.service.gov.uk/.

If you do not know which court to contact, select '**Money**' and then '**Housing**' to find the right court.